

Amendment No. 2 to HB0199

Reneau  
Signature of Sponsor

**AMEND Senate Bill No. 113\***

**House Bill No. 199**

by deleting all language after the enacting clause and substituting:

SECTION 1. Tennessee Code Annotated, Section 68-221-402, is amended by adding the following as a new subdivision:

( ) "Accessory buildings" means subordinate structures on the same lot as a principal single-family dwelling, including accessory dwelling units, garages, barns, sheds, and similar buildings that are incidental to and support the primary residential use of the property;

SECTION 2. Tennessee Code Annotated, Section 68-221-403(a)(10), is amended by adding the following as a new subdivision:

(F)

(i) The commissioner may issue a variance for a subsurface sewage disposal system within the covered area or jurisdiction under § 68-221-410, which shall supersede any more stringent local requirements.

(ii) A variance issued under subdivision (a)(10)(F)(i) must not apply to:

(a) A sewerage system regulated under § 69-3-108;

(b) A subsurface sewage disposal system serving multiple lots; or

(c) Any lot containing more than one (1) single-family dwelling with accessory buildings.

(iii) This subdivision (a)(10)(F) does not apply in any county having a population of not less than three hundred sixty-six thousand two hundred (366,200) nor more than three hundred sixty-six thousand three hundred

(366,300) according to the 2020 federal census or any subsequent federal census.

SECTION 3. Tennessee Code Annotated, Section 68-221-410(a), is amended by adding the following new subdivision:

( ) The commissioner may require a variance granted under this section to be filed and recorded with the county register of deeds with respect to the property subject to the variance.

SECTION 4. This act takes effect upon becoming law, the public welfare requiring it.